

The Board of Education of Brecksville-Broadview Heights City School District, Ohio, met in regular session on June 26, 2024, commencing at 6:00 p.m., at the Board of Education Center, 6638 Mill Road, Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

**RESOLUTION PERMITTING EMPLOYEE DISHONESTY AND
FAITHFUL PERFORMANCE OF DUTY POLICY OF INSURANCE
UNDER OHIO REVISED CODE (R.C. 3.061)**

WHEREAS, the Ohio 132nd General Assembly, by the enactment of H.B. 291 and as amended by H.B. 444, codified at the Ohio Revised Code § 3.061, permits political subdivisions to acquire employee dishonesty and faithful performance of duty insurance coverage for officers, employees, and appointees of political subdivisions who are otherwise required by law to obtain individual surety bonds for the faithful performance of the discharge of their duties;

WHEREAS, an employee dishonesty faithful performance of duty insurance policy may be in lieu of the officers, employees, and appointees obtaining an individual surety bonds;

WHEREAS, under Ohio Revised Code § 3.061(A)(2), “employee dishonesty and faithful performance of duty insurance policy” is defined as an insurance policy, or a coverage document authorized under Ohio Revised Code § 2744.081, to protect against losses that would otherwise be protected against under surety bond and to protect against other losses as determined by the political subdivision.

WHEREAS, the School District is a “political subdivision” for purposes of Ohio Revised Code § 3.061;

WHEREAS, it is the desire of the Board of Education, in accordance with the authority granted to it under Ohio Revised Code § 3.061, to permit the purchase of employee dishonesty and faithful performance of duty insurance policy in lieu of the requirement of those officers, employees, and appointees to obtaining an individual surety bonds for the faithful performance of the discharge of their public duties, and the following shall apply:

Officers, employees, or appointees who would be required to file a bond before commencing the discharge of duties shall be covered by either an employee dishonesty and faithful performance of duty insurance policy, a surety bond, or both;

The coverage amount for an officer, employee, or appointee under the employee dishonesty and faithful performance of duty insurance policy shall be equal to or greater than the maximum amount of the bond otherwise required by law. If no amount, or only a minimum amount, of coverage is specified in law for the

particular officer, employee, or appointee, the amount of coverage shall be in amount as determined by the Board of Education; and

NOW, THEREFORE, BE IT RESOLVED, that the Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, hereby authorizes and permits the purchase of employee dishonesty and faithful performance of duty insurance policy providing coverage for those school officers, employees, or appointees who are otherwise required by law to acquire a surety bond per Ohio Revised Code § 3.061. The Treasurer is further authorized to effect all policies and procedures necessary to carry out this Resolution and administer the terms of the employee dishonesty and faithful performance of duty insurance policy in accordance with this Resolution. This Resolution shall not limit in any manner the Board of Education's ability to otherwise obtain insurance coverage deemed necessary by the Board of Education or as required by law.

This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this Resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in those formal actions were held, in meetings open to the public in compliance with the law.

This Resolution shall be in full force and effect from and immediately upon its adoption

_____ seconded the motion.

Upon roll call on the adoption of the foregoing Resolution, the vote was as follows:

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

TREASURER'S CERTIFICATION

The above is a true and correct extract from the minutes of the regular meeting of the Board of Education of Brecksville-Broadview Heights City School District, Ohio, held on June 26, 2024, commencing at 6:00 p.m., at the Board of Education Center, 6638 Mill Road, Brecksville, Ohio, showing the adoption of the Resolution set forth above.

Dated: June 26, 2024

Treasurer, Board of Education
Brecksville-Broadview Heights City School District, Ohio